

**RESOLUTION
OF THE BOARD OF COMMISSIONERS OF THE CITY OF AMERICUS, GEORGIA TO
ESTABLISH A TEMPORARY MORATORIUM ON THE ZONING, REZONING,
DEVELOPMENT, PERMITTING AND CONSTRUCTION OF DATA CENTERS WITHIN
APPLICABLE JURISDICTIONS**

WHEREAS, a "Data Center" is a physical facility which houses an organization's Critical Infrastructure such as servers, storage, and networking equipment to collect, process and store data, for the purposes of: cloud computing, data storage, server colocation, hyperscale computing, artificial intelligence computation, blockchain processing, cryptocurrency mining, or digital network operations that exceeds ANY of the following: 5 MegaWatts of electrical demand, continuous 24-hour computing operations, 25,000sqft footprint, or industrial-scale cooling systems; and

WHEREAS, for the purposes of this Resolution "Data Centers" will also include facilities that provide a controlled environment for managing applications and data, and include, but are not strictly limited to, IT hardware, including servers, storage systems, routers, and firewalls; and

WHEREAS, such Data Centers for the purposes of this Resolution consist of very large buildings (>25,000 sqft) and infrastructure used in connection with the Data Center's purposes; and

WHEREAS, Data Centers have been proposed in various locations in Georgia and around the country generally where land, water, and electricity are abundantly available; and

WHEREAS, neither the State of Georgia, Sumter County or the City of Americus have any laws, ordinances, or regulations governing the location and operation of Data Centers within either Georgia, Sumter County or the City of Americus; and

WHEREAS, such Data Centers appear to generally be approved or disapproved by the local government entity based upon standard zoning procedures, rules, and regulations; and

WHEREAS, an increasing number of local government entities within the State of Georgia have adopted Data Center moratoriums in order to have sufficient time to study the effects of Data Centers on the area within which they are sited or permitted; and

WHEREAS, information provided to and by City of Americus staff regarding Data Centers indicate that Data Centers come with innate risks, including but not limited to: being huge consumers of electricity, that they can occupy large land areas for their area of operation, that the land occupation can adversely impact other industries of state and national importance such as agriculture by irreversibly converting land use, that land acquisition can be acquired through ethically unsound practices, noise pollution (including infrasound), light pollution, air

pollution from backup generators to maintain operations during blackouts, water pollution from lack of pretreatment agreements, and that they can require large amounts of water in order to operate and maintain that operation on a daily basis; and

WHEREAS, given recent developments regarding Data Centers in the State of Georgia, it is evident that the proliferation of Data Centers in the State of Georgia will likely continue for the foreseeable future; and

WHEREAS, with respect to Data Centers, there are concerns regarding the sufficiency of existing zoning and ordinance where the governing and enforcing bodies of the City of Americus need sufficient time to plan and provide for where Data Centers will not materially affect the values of real property owned by persons and businesses adjacent to or in the vicinity of the real property where the Data Center is proposed to be located, or could be located, under the current zoning code, and in order to deal with other issues (particularly including water usage); and

WHEREAS, the possibility of a Data Center or Data Centers being permitted and constructed has not been thoroughly anticipated or properly considered by the governing and enforcing bodies of the City of Americus, including Planning and Zoning; and

WHEREAS, the term "Data Center" is not sufficiently defined in the City of Americus Code of Ordinances, including the City of Americus Zoning Code; and

WHEREAS, the City of Americus has no zoning or other ordinances which specifically address the zoning, permitting (including water use permits for industries located outside City of Americus Limits utilizing municipal water use), construction and operation of Data Centers; and

WHEREAS, the City Council of the City of Americus, after having reviewed the matter and received public input, deems it appropriate to adopt this temporary moratorium on the zoning, rezoning, permitting, and construction, of Data Centers where exigent circumstance warrant such, pursuant to the case law found at Taylor v. Shetzen, 212 Ga. 101, 90 S.E.2d 572 (1955); Lawson v. Macon, 214 Ga. 278, 104 S.E.2d 425 (1958); and most recently City of Roswell et al v. Outdoor Systems, Inc., 274 Ga. 130, 549 S.E.2d 90 (2001); and

WHEREAS, the City Council for the City of Americus have been vested with substantial powers, rights and functions to generally regulate the practice, conduct or use of property for the purposes of maintaining health, morals, safety, security, peace, and the general welfare for the City of Americus; and

WHEREAS the Georgia Supreme Court, in the case of DeKalb County v. Townsend, 243 Ga. 80 (1979), held that "To justify a moratorium, it must appear first, that the interests of the public generally, as distinguished from those of a particular class, require such interference; and second, that the means are reasonably necessary for the accomplishment of the purpose, and not unduly oppressive upon individuals." The City of Americus has found that the interests of the

public necessitate the enactment of a moratorium for health, safety, morals and general welfare purposes by means which are reasonable; and

WHEREAS, this temporary moratorium is adopted pursuant to the police powers of the governing body of the City of Americus for the purposes of protecting public interest, the property values of interested parties, and to avoid relatively uncontrolled development of Data Centers in the future, the moratorium is narrowly tailored to meet such purposes, and the moratorium is being established for a reasonable duration so that the purposes of the moratorium can be met in a reasonable period of time.

NOW THEREFORE, be it resolved by the City Council of the City of Americus, Georgia, and it is hereby resolved by authority of the same, as follows:

1. There is hereby imposed within the jurisdictions of the City of Americus, Georgia, a temporary moratorium on the zoning, rezoning, development, permitting, and construction of Data Centers. Such moratorium shall be in effect within all of jurisdiction of the City of Americus, including governing, regulating and permitting bodies that may have influence in unincorporated Sumter County during the term thereof as set out in Paragraph 2 below.
2. This moratorium shall be effective as of the date and time of its adoption by the governing body of the City of Americus and shall continue in effect until January 25, 2028, at midnight, unless such a time period is amended by the governing body of the City of Americus, Georgia.
3. During the moratorium period, the City of Americus, Planning and Zoning Staff, the City of Americus City Council, and other experts in locating and operating Data Centers, shall seek to study the short-term and long-term potential effects of Data Centers and to draft, consider and adopt appropriate amendments to The City of Americus's Land Use Plan and the City of Americus Code of Ordinances so as to provide for the orderly zoning, rezoning, development, permitting, and construction of Data Centers within applicable jurisdictions.
4. a.) The term "Data Center" shall have the meaning as stated in the preamble to this Resolution.

b.) The term "Land Use Plan" shall mean the joint Sumter County Comprehensive Plan 2024 presently in existence adopted by the City of Americus on December 19, 2023 and other relevant land use planning policy.

BE IT FURTHER RESOLVED that all Resolution or parts of Resolutions in conflict herewith are hereby rescinded.

BE IT FURTHER RESOLVED that this Resolution shall become effective upon the date and time of the adoption thereof as set out below.

SO RESOLVED, effective this _____ day of _____, 2026, at
_____ o'clock _____.m. by the governing body of the City of Americus, Georgia.

ATTEST:

MAYOR

CITY CLERK